

2013 WL 1091331 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Pablo PALACIOS, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department, Police Officer **Kevin Mockel**, Police
Officer Stephen Russo, Police Officer John Doe and Police Officer John Roe, Defendant(s).

No. 0020803-2013.
March 6, 2013.

Summons

Neil Wollerstein, Esq., Attorney for Plaintiff, 59 Maiden Lane, 17th Floor, New York, NY 10038, (212) 412-4705, File No.: NW-447.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York March 6, 2013

VERIFIED COMPLAINT

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

1. That at all times the Plaintiff **PABLO PALACIOS** was and is a resident of Bronx County, New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That on and prior to 1/4/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER **KEVIN MOCKEL** (Shield No. 21947), hereinafter referred to as "MOCKEL" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 1/4/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER STEPHEN RUSSO (Shield No. 1734), hereinafter referred to as “RUSSO” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 1/4/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and-NYPD.

7. That on and prior to 1/4/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **PABLO PALACIOS** caused the notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff **PABLO PALACIOS** herein, containing the statement of the name and place of residence of the claimant by the street and number and his attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

9. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

10. That the defendants requested an oral examination pursuant to [General Municipal Law Section 50-H](#) and said request was complied with.

11. That on or about 1/4/12, at approximately 3:00 p.m., the Plaintiff **PABLO PALACIOS** while lawfully in the vicinity of 3438 Eastchester Road, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, MOCKEL, RUSSO, DOE and ROE of having committed the crime of Resisting Arrest and other related charges.

12. That on or about 1/4/12, at approximately 3:00 p.m., the Plaintiff **PABLO PALACIOS** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, their agents, servants and/or employees, and in particular, by MOCKEL, RUSSO, DOE and ROE.

13. That on or about 1/4/12, and upon arresting the Plaintiff **PABLO PALACIOS** and depriving him of his liberty, CITY, NYPD, MOCKEL, RUSSO, DOE and ROE took the Plaintiff **PABLO PALACIOS** to a police station in the County of Bronx and entered him on the records as under arrest.

14. That on or about 1/4/12, the CITY, NYPD, MOCKEL, RUSSO, DOE and ROE further caused Plaintiff PABLO PALACIOS to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

15. That on or about 1/4/12 Plaintiff PABLO PALACIOS was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

16. That at all times hereinafter mentioned the actions of CITY, NYPD, MOCKEL, RUSSO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

17. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

18. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-17 with the same force and effect as if fully set forth at length herein.

19. That on or about 1/4/12, a criminal complaint was issued by the CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

20. That on or about 1/4/12 a criminal action against Plaintiff **PABLO PALACIOS** was commenced by CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

21. That solely as a result of the aforesaid, the Plaintiff **PABLO PALACIOS**' life was interfered with.

22. That the criminal action against Plaintiff **PABLO PALACIOS** was continued for an extended period of time by defendants with malice and bad faith.

23. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **PABLO PALACIOS**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

24. That on or about 1/29/13, the criminal action against Plaintiff **PABLO PALACIOS** was terminated favorably by dismissal.

25. That the actions of CITY, NYPD, MOCKEL, RUSSO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

26. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

27. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -26 with the same force and effect as if fully set forth at length herein.

28. That on or about 1/4/12, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **PABLO PALACIOS** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated and handcuffed by the CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

29. That on or about 1/4/12 CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the **CITY, NYPD, MOCKEL, RUSSO, DOE and ROE**, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **PABLO PALACIOS** in that they have the real or

apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **PABLO PALACIOS** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **PABLO PALACIOS** and caused such battery in and about his head, neck, back, body and limbs.

30. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **PABLO PALACIOS** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

31. That as a result of the aforesaid assault and battery the Plaintiff **PABLO PALACIOS** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

32. That at all times hereinafter mentioned the actions of CITY, NYPD, MOCKEL, RUSSO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

33. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

34. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-33 with the same force and effect as if fully set forth at length herein.

35. That at all times hereinafter mentioned the aforesaid false arrest, assault, battery, false imprisonment and malicious prosecution was caused solely as a result of the negligence of CITY, NYPD, MOCKEL, RUSSO, DOE and ROE, their agents, servants and/or employees.

36. That at all times hereinafter mentioned the actions of CITY, NYPD, MOCKEL, RUSSO, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

38. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-37 with the same force and effect as if fully set forth at length herein.

39. That the CITY, NYPD, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior or their personnel and in particular defendants MOCKEL, RUSSO, DOE and ROE, and in their hiring practices in the exercise of their functions in that they had a reckless lack of caution's regard for the rights of the public, including Plaintiff **PABLO PALACIOS** and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

40. Defendants CITY and NYPD have grossly failed to train and adequately supervise its police officers and employees in the fundamental law of arrest, search and seizure especially when its police officers and employees are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers and employees should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

41. Defendant CITY was negligent by failing to implement a policy and instruct police officers who, absent the consent of Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest warrant or search warrant, said police officers of the CITY and NYPD are not to arrest individuals such as Plaintiff herein where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where an individual is not resisting arrest.

42. Defendant CITY is negligent due to its failure to implement a policy or actively enforce the law if any of the following are lacking: i) probable cause must be present before an individual such as the Plaintiff herein can be arrested; ii) excessive force cannot be used against an individual who does not physically resist arrest; iii) an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

43. The foregoing acts, omissions, and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, falsely imprison, seize, illegally search, commit an assault and battery on Plaintiff, maliciously prosecute and deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

44. Defendant CITY was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

45. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

47. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-46 with the same force and effect as if fully set forth at length herein.

48. In arresting Plaintiff **PABLO PALACIOS**, police officers including but not limited to MOCKEL, RUSSO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

49. In arresting Plaintiff **PABLO PALACIOS**, police officers including but not limited to MOCKEL, RUSSO, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **PABLO PALACIOS** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

50. As a result of the abuse of process by defendants herein, Plaintiff **PABLO PALACIOS** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

51. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF PABLO PALACIOS

52. Plaintiff **PABLO PALACIOS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 51 with the same force and effect as if fully set forth at length herein.

53. At all times mentioned herein, defendants CITY, NYPD and NYPD police officers MOCKEL, RUSSO, DOE and ROE were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

54. Plaintiff **PABLO PALACIOS** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

55. That on or about 1/4/12, defendants CITY, NYPD, MOCKEL, RUSSO, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **PABLO PALACIOS**, did search, seize, assault and commit a battery and grab the Plaintiff PABLO PALACIOS without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **PABLO PALACIOS** during the arrest process in an unlawful and excessive manner. Plaintiff **PABLO PALACIOS** was falsely arrested, unlawfully imprisoned and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

56. The above actions of defendants CITY, NYPD, MOCKEL, RUSSO, DOE and ROE resulted in Plaintiff **PABLO PALACIOS** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; and f) Freedom from the use of excessive force during the arrest process.

57. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

58. Defendants CITY, NYPD, MOCKEL, RUSSO, DOE and ROE subjected Plaintiff **PABLO PALACIOS** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **PABLO PALACIOS'** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

59. The direct and proximate result of the defendants CITY, NYPD, MOCKEL, RUSSO, DOE and ROE acts are that Plaintiff **PABLO PALACIOS** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

60. That by reason of the foregoing, Plaintiff **PABLO PALACIOS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **PABLO PALACIOS** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York March 6, 2013

Yours, etc.,

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff th

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File No.: NW-447

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